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Policy on Reporting Unwanted Conduct and Investigating Harassment at ESA

1. INTRODUCTION

The Agency's most valuable resource is its staff. The Agency strives for a work environment that is free of harassment, and where all persons are treated with respect and dignity. This means having a healthy and safe organisation based on values such as integrity, honour and trust.

Diversity is a richness and brings added value for the Agency. However, ensuring a harmonious working environment with a diverse population requires a thoughtful attitude, since the notion of what is acceptable behaviour may vary from one culture to the next. This requires an organisational culture where everyone feels a personal responsibility to uphold the dignity of all colleagues.

With a view to addressing and, wherever possible, avoiding interpersonal conflicts, it is strongly encouraged to seek resolution of those issues informally. For this purpose, staff members are free to get support from the stakeholders whose roles and responsibilities are defined under Section 6 below. In addition, the Agency has established a Policy on Facilitation and Mediation, whereby simple and reliable informal mechanisms for dispute resolution are provided for (cf. ESA/ADMIN/IPOL-WORK(2019)1). Having recourse to the informal resolution of interpersonal issues does not preclude application of the formal procedure provided for in the present Instruction.

2. POLICY

It is the Agency's Policy to protect the dignity of every person working at ESA against any form of unwanted conduct and harassment as well as to implement preventive measures conducive of a respectful workplace. This Policy is also to introduce a fair and transparent procedure to deal with the reporting of unwanted conduct and occurrences of harassment.

3. SCOPE OF APPLICATION

In light of the definitions detailed in Section 4 below, the present Instruction applies to situations of harassment involving one or several staff members as party, i.e., either as the person(s) subject to the occurrences reported, or as the person(s) concerned by the report. In addition, the occurrences reported must relate to the staff members' functions or having taken place at ESA's premises. Under this understanding, the present Instruction applies to cases between:

- staff members, or
- staff members and non-staff members.

even if the reference to articles in the Staff Regulations, Rules and Instructions applies only to ESA staff members.

4. DEFINITIONS

Within the scope of this Instruction, the following definitions apply.

4.1 Harassment

Harassment is defined as any improper behaviour that is reasonably expected or perceived as offending, intimidating, hostile, or undermining the dignity or adversely affecting the physical or mental health of a person or a group of persons. Harassment often implies a series of incidents. It may come from colleagues on an equal footing, as well as superiors and subordinates. Harassment may take the form of verbal or written abuse of a degrading or offensive nature or of intimidation or threats, may occur for a variety of reasons and may be directed at an individual or at a group of persons. Harassment may take various forms, such as those described in the sections hereinafter. Harassment might have various consequences for the person who is subject to it or who feels they are being subjected to it:

- they become isolated and social relationships tend to deteriorate
- they make more mistakes, can no longer concentrate, become less productive, are demotivated, etc.;
- their professional development is hindered, career jeopardised, their very job put on the line;
- they suffer mental and physical health problems.

The adverse consequences do not just affect the Person(s) Subject to Harassment, but also impact on other colleagues and on the institution itself: loss of expertise, staff transfers, fall in productivity, absenteeism, harming the image of the institution, etc.

For these reasons, whichever the form it may take, harassment is unacceptable, and occurrences of harassment should be reported.

Certain kinds of behaviour may hurt certain people without constituting harassment. For example, a remark, a dispute, a clash of personalities, professional stress caused by overwork or poor organisation, a management decision (such as redeployment or a transfer), which is difficult to accept, a duly substantiated negative assessment, even repeated, are not *prima facie* considered harassment. In case of doubt, it is strongly encouraged to first get support from the stakeholders whose roles and responsibilities are defined under Section 6 below before considering the launching of the procedure described in the Annex.

For the purpose of the present Instruction and the Annex, it is understood that, even where the present Instruction refers to “harassment”, the occurrences reported to the Head of Human Resources Department remain allegations¹ until establishment of the facts by the Investigator(s) and until the Investigator(s) conclude that the allegations are substantiated at the end of the investigation procedure.

a) Sexual Harassment

Sexual harassment is defined as any form of verbal or physical conduct or gesture of a sexual nature, or any other conduct of a sexual nature that is reasonably expected to be, or reasonably perceived as being, offending, humiliating, intimidating, hostile, or as undermining the dignity of individuals at work.

- Physical conduct of a sexual nature is regarded as meaning unwanted physical contact ranging from e.g., unnecessary touching, patting or pinching or brushing against another employee’s body; it also includes coercion into having sexual intercourse.
- Verbal conduct of a sexual nature may include unwelcome sexual advances, propositions, or pressure to engage in sexual activity, offensive flirtation, suggestive remarks, innuendoes, or lewd comments.
- Non-verbal conduct of a sexual nature refers to *inter alia* the display of pornographic or sexually suggestive pictures, objects or written materials, leering, or making sexually suggestive gestures.
- Sexual harassment may also correspond to conduct that denigrates, ridicules, intimidates, or is physically abusive of persons because of their gender, such as derogatory or degrading abuse, insults which are gender-related, or offensive comments about appearance, body parts or clothing.

b) Moral Harassment

Moral harassment is defined as any type of conduct that is reasonably expected or perceived as abusive and repeated over a sustained period on the part of an individual or group of individuals, which, through behaviour, words (whether spoken or written),

¹ Except when the facts are clearly established, cf. Section 3 of the Annex.

actions or gestures, is an attack on a person's personality, dignity, physical or mental well-being. Such acts may endanger the individuals' employment or bring about a marked deterioration in the workplace environment.

This kind of harassment may pertain e.g., to ethnicity, colour, religion, gender, sexual orientation, or disability in accordance with Section 4.2 below.

c) Bullying

Bullying is a form of harassment where an individual abuses a position of influence over another person. It involves persistent criticism and personal abuse, both in public or in private, which humiliates and demeans the individual gradually eroding their sense of self. It can take many different forms.

The following are some other examples of behaviour, which may reasonably be perceived as bullying:

- Shouting at an individual
- Picking on one person when there is a common problem
- Consistently undermining someone and their ability to do their job.

d) Mobbing

Mobbing means ganging up on someone or psychologically undermining them at work. It can be less overt than bullying and it may not even be obvious that a person is being victimised in this way. It is characterised by somewhat subtler behaviour than bullying by, for example, socially isolating the person(s) or pushing them into a helpless or defenceless position. It involves an individual or a "mob" of people who deliberately set out to make the working life of a colleague miserable.

The following are some other examples of behaviour which may reasonably be perceived by a person as constituting mobbing:

- colleagues do not talk to them, they are isolated or ignored (e.g. a person has limited possibilities to maintain social contact);
- others gossip about them, ridicule them or make fun of them such that a person may have difficulty maintaining their personal reputation, or
- they are not given any work or are given meaningless tasks (there are adverse effects on their occupational situation).

4.2 Discrimination

Discrimination is any unfair treatment or arbitrary distinction based on a person's race, sex, ethnic origin, nationality, political, philosophical or religious opinions, health, disability, gender or sexual orientation, age, or other status. It may be an isolated event affecting one person or a group of persons or may manifest itself through harassment as defined above.

4.3 Person(s) Concerned

Any person concerned by reports on occurrences of harassment and accused to have perpetrated or participated in the perpetration of those occurrences.

4.4 Reporting Person(s) and Person(s) Subject to Harassment

Reporting Person(s) shall refer to any person reporting occurrences of harassment to the Head of the Human Resources Department. The Reporting Person(s) can be a witness of the occurrences reported, or the Person(s) Subject to Harassment.

Person(s) Subject to Harassment shall refer to any person being subject to the occurrences of harassment reported to the Head of the Human Resources Department.

4.5 Investigator(s)

The external professional(s) entrusted by the Head of the Human Resources Department with the duty to undertake a preliminary assessment of the occurrences reported and when required investigate them, in accordance with the Annex to this Instruction. The Investigator(s) shall be professional, neither present nor former ESA staff members, and shall have acquired substantial experience in the field of investigations of unwanted and inappropriate conduct in particular in multi-cultural environments. Investigator(s) shall be bound by the rules and procedure described hereafter.

4.6 Retaliation

Any direct or indirect act or omission, which is prompted by the reporting of occurrences, and which causes or may cause detriment to the Reporting Person(s) and/or to the Person(s) Subject to Harassment.

5. PRINCIPLES

5.1 Prevention

Harassment is not tolerated at ESA and the Agency is committed to prevent inappropriate behaviour in the workplace. For this purpose, and in addition to prohibiting harassment and providing adequate measures to address it, the Agency's focus is also on conflict prevention. In order to create a harmonious working environment and mitigate the risks of interpersonal issues, individuals are encouraged to get acquainted with the ESA Charter of Values and the ESA Behaviour Guide. They are also encouraged to follow training to develop their behavioural skills, notably in the field of interpersonal communication and conflict management.

In the case where an individual is facing interpersonal issues, and where appropriate, it is strongly advised as a first step to seek the resolution of the problem through informal procedures. As such, in a first instance, the Person Concerned may be approached to inform them that their conduct is unwelcome and should cease. Support may also be sought from the stakeholders whose roles and responsibilities are described in Section 6 below. It is also possible to request involvement of the Conflict Navigators and/or the Mediators in accordance with ESA/ADMIN/IPOL-WORK(2019)1.

The advantage of those procedures over the formal procedure described in the Annex lies in the possibility of finding an amicable settlement of the situation in shorter timeframes, thereby avoiding any further deterioration of the situation and of the working environment.

5.2 Breach of obligations

Harassment constitutes a breach of general staff obligations as per Staff Regulations 2.1 and is an offence liable to disciplinary action as per Staff Regulation 25.1.

As regards non-ESA staff, and in particular contractors, harassment shall be treated according to the laws and policies applicable to their employment contract. In such case, the Director General may take appropriate measures accordingly.

5.3 Reporting

Any person who feels they are Person(s) Subject to Harassment are entitled to report the occurrences in accordance with the procedure described in the Annex. Any person who witnesses occurrences where a colleague appears to be a Person Subject to Harassment within the Scope of the Policy defined in Section 3 may also report the situation in line with the procedure described in the Annex.

The Reporting Person(s) may wish to report the occurrences anonymously; in such case, they may do so in line with the provisions set out in the Annex below.

5.4 Prohibition of Retaliation

Any person reporting occurrences of harassment in good faith, whether as the Person Subject to Harassment or as a witness of those occurrences, or who co-operates in the investigative process shall be protected from Retaliation or other adverse consequences.

Any such reprisals, whether direct or indirect, perpetrated by a staff member against the Reporting Person(s) and/or the Person(s) Subject to Harassment, or against any person involved in the case or in the investigation procedure, constitute an offence liable to disciplinary action as provided for in ESA Staff Regulation 25.1. In case of

violation of this principle by a non-ESA staff member, the Director General may take appropriate measures.

5.5 Presumption of Innocence, Prohibition of False Accusation and Defamation

The presumption of innocence is guaranteed to the Person(s) Concerned until establishment of the facts pursuant to the procedure described in the Annex.

Accusations made by staff members in bad faith and/or with malicious intent, or resulting in defamation, constitute an offence liable to disciplinary action as provided for in ESA Staff Regulation 25.1. In case of violation of those principles by a non-ESA staff member, the Director General may take appropriate measures.

5.6 Prohibition of Hindering of Reporting and Evidence Tampering

Hindering or attempting to hinder reporting, as well as evidence tampering such as witness tampering constitute an offence liable to disciplinary action as provided for in ESA Staff Regulation 25.1. In case of violation of those principles by a non-ESA staff member, the Director General may take appropriate measures.

5.7 Fair Process

Investigation procedures are to be conducted following a rigorous, transparent and fair process, guaranteeing inter alia due process for the Person(s) Concerned, as well as the impartiality and objectivity of the Investigation Team.

5.8 Confidentiality

The Agency shall ensure that confidentiality is respected throughout the procedure starting from the submission of the report to the Head of the Human Resources Department and during the investigation, in order to (i) preserve the reputation of the parties involved, in particular of Reporting Person(s) and/or the Person(s) Subject to Harassment, the Person(s) Concerned and any person involved in the investigation; (ii) more generally, protect the interests of the parties in line with the principles defined in the previous Sections but also in observance of the ESA Security Regulations and Directives and the ESA Framework on Personal Data Protection.

6. ROLES AND RESPONSIBILITIES

All staff members, on-site contractors' personnel, research fellows, and trainees are responsible for making the policy on preventing harassment at ESA work effectively and for contributing to an atmosphere of mutual trust, support, and respect.

In addition, the following services or functions play specific roles in implementing the policy, as described below. In accordance with Section 5.1 above, having recourse to

these stakeholders constitutes alternative means to address interpersonal issues and shall not trigger the application of the procedure described in the Annex, which can only occur upon the submission of a report to the Head of the Human Resources.

6.1 Line Managers

Line Managers are in principle the first category of persons who may be contacted by anyone encountering unwanted conduct and harassment, being in direct contact with staff. They are key players in protecting staff dignity and it is their responsibility to promote a respectful work atmosphere and a workplace where harassment does not occur and to react quickly if it does. It is the duty of managers to:

- implement and promote this policy;
- foster a climate that discourages the occurrence of unwanted conduct and harassment;
- recognise early signs of unwanted conduct and harassment and take immediate and appropriate action to put a stop to it;
- assist their staff by providing information and advice as to possible ways of resolving a harassment case;
- ensure the rapid and fair handling of any incident or complaint on this issue.

Line Managers may receive specific training within the ESA management training programme.

6.2 Staff Members

Every staff member has the responsibility to familiarise themselves with this Instruction and to comply with it. They are invited to act, when possible, in accordance with the principles on prevention described in Section 5.1 above.

In particular, staff members are encouraged to take action if they observe that a colleague may be subject to unwanted conduct or harassment. They may want to talk to the Person(s) Subject to Harassment, to the line manager, or if the line manager is involved, to the Human Resources Department, to a Conflict Navigator or any of the support functions mentioned in 6.4 hereafter. They may also wish to approach the Person(s) Concerned to inform them that their conduct is not appropriate. Staff members witnessing occurrences of harassment can also report the situation to the Head of the Human Resources Department to launch the formal procedure prescribed in the Annex.

Staff members are also obliged to cooperate in the smooth conduct of all enquiries carried out as part of the formal procedure.

6.3 Human Resources Department

The Human Resources Department may be contacted, in particular the HR Advisors or Business Partners, in case of unwanted conduct or harassment. In such case, it is the Department's duty to provide advice and where appropriate, act in accordance with the principles described below. More generally, the Human Resources Department is responsible for:

- developing and implementing measures which ensure a respectful and healthy working environment;
- promoting a culture in which harassment, like other forms of unwanted conduct, violence or intimidation in the workplace, are considered unacceptable and are neither tolerated nor ignored;
- developing measures to promote prevention, provide information, training (both individual and collective), as well as raising awareness at the workplace to avoid and reduce the risk of harassment.

The Head of the Human Resources Department is responsible for taking action under the formal procedure as defined in Annex, upon receiving a report from the Reporting Person(s).

Information at the workplace will consist of:

- awareness campaigns comprising talks, discussions, workshops, brochures and posters;
- explaining to individuals ESA's policies on facilitation and mediation, and on preventing unwanted conduct and investigating harassment;
- the provision of clear and precise information to help individuals find out quickly and easily how to obtain support, advice and guidance and how to lodge a complaint;
- an Intranet site.

The training plan to support a policy of prevention of unwanted conduct and investigating harassment comprises:

- raising staff's awareness of unwanted conduct and harassment issues when they join the service;
- management participation in specific training and seminars to improve awareness of issues and to help them manage such situations in accordance with the rules in force at ESA. Managers are strongly encouraged to attend such courses;
- specific training courses on unwanted conduct and harassment issues for staff and particular target groups as and when required.

Eventually, this policy (training measures, information campaigns, coordinating the prevention approach) will be implemented and developed on the basis of close cooperation between the various services or functions concerned.

The operational links between the various departments and networks concerned will be overseen by the Human Resources Department.

6.4 Support Functions (medical services, welfare officers and psychologists)

While respecting legitimate requests for confidentiality, the Human Resources Department will foster the exchange between these functions in order to ensure a coherent approach and to initiate action when necessary.

6.5 Staff Association

Since the nature of conflicts in the workplace are predominantly local issues, staff members are free to approach the local SAC Chair or Vice-Chair for advice if they encounter unwanted conduct or harassment.

6.6 Investigator(s)

The Investigator(s) as defined in Section 4 above and designated in accordance with the Annex to this Instruction are responsible for carrying out the investigation procedure.

7. EVALUATION OF THE POLICY

The effectiveness of this Instruction and its implementing documents will be evaluated by the Human Resources Department in cooperation with the Investigator(s), the Coordinating Mediator and the network of Conflict Navigators where applicable and on a periodic basis, or at any time upon request of the Director General.

The Human Resources Department shall submit an annual report to the Director General with a copy to the CSAC on the practical implementation of this policy.

Effectiveness of the Policy will be measured against ex-post evaluation and the results of bi-annual Staff engagement surveys.

8. IMPLEMENTING DOCUMENTS

This Policy is implemented through the application of the Rules and Procedure Governing the Investigation of Harassment (Annex).

9. VALIDITY

This Instruction enters into force on the day of its publication and is effective for a period of four (4) years as from the date of its entry into force subject to prior revocation or revision as determined by the Director General. At least one year prior to the end of this period it shall be reviewed to establish whether it requires extension, modification or revocation.

10. SUPERSEDED INSTRUCTION

This Instruction supersedes ESA/ADMIN/IPOL-WORK(2019)2 which is revoked.

11. ENTRY INTO FORCE

This Instruction enters into force on the day of its publication.

12. PUBLICITY

This Instruction is made available to onsite contractors' personnel.



The Director General

Annex

Rules and Procedure Governing the Investigation of Harassment

Inappropriate and even unacceptable behaviour does not necessarily constitute a case of harassment and often a distinction is difficult to make at the outset. It is for this reason that the Agency has introduced informal and formal procedures aiming at resolving any type of interpersonal conflict. It is strongly advised to seek the resolution of the problem through informal mechanisms first with the possible involvement of the Conflict Navigators and/or the Mediators pursuant to the Policy on Facilitation and Mediation at ESA (cf. ESA/ADMIN/IPOL-WORK(2019)1).

Should the informal procedure be deemed inappropriate or unsuccessful, individuals may prefer launching the formal procedure as set out below.

1. Introduction

The present Annex determines the rules and procedure governing the investigation of harassment to be initiated by the Head of the Human Resources Department.

This procedure is limited to establishing and gathering facts and collecting evidence in order to determine whether facts of harassment have genuinely occurred, and if so, to report it to the Head of the Human Resources Department. It is not a disciplinary procedure, but the evidence collected during the investigation set out herein and the report to the Head of the Human Resources Department may serve as a basis for or be used in a subsequent disciplinary action in accordance with the Staff Rules.²

2. Reporting

2.1 Filing a report

Person(s) Subject to Harassment wishing to report the occurrences must submit their report to the Head of the Human Resources Department. They are free to do so without first going through the informal procedures described above (including the informal mechanisms foreseen in ESA/ADMIN/IPOL-WORK(2019)1), or in the course of or at the end of the informal procedures.

Any individual witnessing occurrences of harassment, within the scope of Section 3 of the present Instruction, can also report the situation to the Head of the Human Resources Department, in order to launch the formal procedure.

² Staff Rule 26/1 at the time of entry into force of the present Instruction and its Annex.

The Reporting Person(s) may wish to report the occurrences anonymously; in such case, the report should be sufficiently detailed, and the occurrences reported supported by available evidence (e.g. in identifying witnesses), in light of the impossibility for the Investigator(s) to liaise with the Reporting Person(s). Alternatively, the Reporting Person(s) may specify contact details for the Investigator(s) to be able to reach them directly.

Communications between the Head of the Human Resources Department and the Reporting Person(s), the Person(s) Subject to Harassment or any other person involved in the complaint are considered ESA UNCLASSIFIED – For ESA Official Use Only – HR in Confidence and shall therefore only be disclosed in accordance with sections 4.1.2.1 and 4.1.2.3 of the ESA Security Directives.

2.2 Admissibility of the report

The report shall be filed within twenty-four (24) months of the most recent act of harassment. Under exceptional circumstances, this twenty-four-month period may be extended by the Head of the Human Resources Department. Should this time limit not be observed, the Head of the Human Resources Department may decide to close the matter without having recourse to the procedure described below.

Upon receipt of the report, the Head of the Human Resources Department shall proceed in line with the procedure described below.

3. Preliminary Fact-Finding and Initiation of Further Investigation

The purpose of the preliminary fact-finding and, when applicable, subsequent further investigation is to collect and assess the factual evidence of the case in order to determine whether or not the allegations of harassment are substantiated and the respective responsibilities of the parties.

Where the investigation detects possible weaknesses in internal control and management practices in relation to the case, improvements and risk mitigation actions shall be recommended accordingly to the Head of the Human Resources for decision.

3.1 Initiation of the preliminary fact-finding

When the Head of the Human Resources Department receives a report of harassment, they shall acknowledge receipt when the Reporting Person(s) is identifiable and refer the case to the Investigator(s), within 5 working days, for preliminary fact-finding.

a) Purpose of the preliminary fact-finding

The purpose of the preliminary fact-finding to be conducted by the Investigator(s) is to evaluate the reliability of the information provided in the report with a view to determining whether there is sufficient basis to warrant further investigation and require in particular for the Person(s) Concerned to be heard to present their version of events and reply to the allegations made against them.

For this purpose, the report submitted to the Head of the Human Resources Department, along with any additional documentation submitted with it, is transmitted to the Investigator(s), who will evaluate: the allegations provided therein against the definitions provided in this Policy; the evidence to be collected from the Reporting Person(s) and from the Person(s) Subject to Harassment if different from the Reporting Person(s), and any witness identified at that stage.

b) Time limits

Unless there are exceptional circumstances, the Investigator(s) shall undertake and complete the preliminary fact-finding within 15 working days from the date the Head of the Human Resources Department has seized them with the case.

In exceptional cases where measures need to be taken promptly or where facts are clearly established, the Head of the Human Resources Department may also decide to initiate a disciplinary procedure in accordance with Staff Regulation 25.1, or to refer the matter to national administrative or judicial authorities in line with Section 10 below, without conducting a preliminary fact-finding.

c) Interview of the Person(s) Subject to Harassment

In all cases, and in particular when the Reporting Person(s) is not the Person(s) Subject to Harassment, the Investigator(s) will interview the Person(s) Subject to Harassment before completing the preliminary fact-finding exercise, in order to inter alia verify whether they have objections to proceed with the conducting of further investigation as described in the procedure below. If the Person(s) Subject to Harassment does not wish for this procedure to be conducted, the Investigator(s) may recommend to the Head of the Human Resources Department to close the case on this basis, as described in the Section 3.2.

3.2 Outcome of the preliminary fact-finding

Upon completion of the preliminary fact-finding, the Investigator(s) shall submit their findings to the Head of the Human Resources Department for decision. Where the Investigator(s) determine that there is a sufficient basis to merit further investigation, they shall accordingly recommend it to the Head of the Human Resources Department.

If they find that, on the basis of the preliminary fact-finding, the allegations submitted in the report do not amount to harassment, they shall recommend the closing of the case accordingly.

In the case where one of the parties is the Director to whom the Head of the Human Resources Department reports, decisions to be taken in the present procedure and described in the following sections shall be taken by the Director General instead.

a) Recommendation to close the case

If the Investigator(s) recommend to close the case upon completion of the preliminary fact-finding and the Head of the Human Resources Department endorses this recommendation, the latter shall notify the Person(s) Subject to Harassment, within 10 working days from the receipt of the recommendation, of their decision to close the case.

The Investigator(s) may identify, along with the recommendation to close the case, alternative means to improve the situation between the parties in line with ESA/ADMIN/IPOL-WORK(2019)1 and with the principles and responsibilities exposed in the previous Sections, such as:

- The referral of the case to management,
- The recourse to informal means for solving the conflict in line with ESA/ADMIN/IPOL-WORK(2019)1,
- The referral of the case to the Human Resources Department for other appropriate measures (e.g., training, reassignment, changes to Terms of Reference).

In the specific case where the recommendation to close the case results from the wish of the Person(s) Subject to Harassment (cf. Section 3.1) and should there be exceptional circumstances where public order be at jeopardy, the Head of the Human Resources Department may decide to conduct further investigation despite the recommendation of the Investigator(s) and proceed in line with the below.

b) Conducting of a further investigation

Should the Investigator(s) consider that there is sufficient basis to merit further investigation, the Investigator(s) will inform the Head of the Human Resources Department. The Head of the Human Resources Department shall notify the Person(s) Subject to Harassment of this process within 5 working days from receipt of the information by the Investigator(s). As regards the Person(s) Concerned, the Head of the Human Resources Department shall notify them of the fact that an investigation is being conducted based on a report of harassment submitted against them. Such

notification shall be made 3 working days before the date set by the Investigator(s) for their interview.

The notification to the Person(s) Concerned shall comprise the following:

- purpose of the investigation, i.e. collect the facts and evidence relating to the case at stake;
- reassurance that the presumption of innocence will protect their rights until establishment of the facts and in particular, until the evidence gathered throughout the investigation concludes, beyond a reasonable doubt, that the allegations are substantiated;
- explanation that they will accordingly be called for interview by the Investigator(s), in order to be heard, present their version of events and reply to the allegations made against them, but also to identify witnesses, if any;
- confirmation that the Person(s) Concerned may be accompanied by a colleague of their choice, and especially a member of the ESA Staff Association should the Person(s) Concerned be staff members under the conditions prescribed in Section 6 below;
- information that the details on the allegations submitted against them will be provided by the Investigator(s) during the interview.

In case the Head of the Human Resources Department has serious reasons to believe that such notification might endanger the outcome of the investigation, then they shall inform the Investigator(s) to ensure that the securing of evidence is not jeopardized. However, in accordance with Section 6 hereafter, conclusions following further investigation may in no case be drawn without the Person(s) Concerned:

- having been informed about the allegations that are made against them;
- having been heard; and
- having had the opportunity to bring forward any oral or written evidence that they see fit and to call witnesses.

4. Investigation Team

The Head of the Human Resources Department shall appoint one or several external Investigator(s) and assign a staff member as the contact point to provide assistance to the Investigator(s).

In cases of sexual harassment, the Person(s) Subject to Harassment may request that the Investigator(s) or at least one Investigator of a specific gender be assigned to investigate the allegation.

The Investigator(s) shall maintain objectivity, impartiality and fairness throughout the investigative process and conduct their activity with the highest levels of integrity.

To that effect they shall confirm at the time of, or at any time subsequent to their nomination, that they are not directly involved in the matter to which the investigation relates, nor have any direct interest or close association with any of the person(s) involved and avoid any conflict of interest or appearance thereof. If there is any doubt in this regard, the Investigator(s) shall refer the matter to the Head of the Human Resources Department, who shall appoint a replacement. If a conflict of interest or an appearance thereof arises during an investigation, and as a result new Investigator(s) are appointed, the information gathered up to that point shall be handed over immediately to the new Investigator(s).

The new Investigator(s) shall decide, in the light of the information available to them and of the nature of the seriousness of the conflict of interest or appearance thereof, whether to continue the investigation on the basis of the information already gathered or to begin the investigation again in relation to some or all of this information.

5. Rights of the Investigator(s) and Further Investigation Procedure

The Investigator(s) carries out the investigation by collecting information and documents, and in particular by carrying out on-the-spot checks, inspections and interviews within the limits of the applicable rules, in particular the ESA Security Directives and the applicable ESA Framework on Personal Data Protection.

Statements of interviews shall be drawn up by the Investigator(s) when interviews are taking place. Interviews shall be recorded for the mere purpose of establishing statements of interviews; these records shall be destroyed upon finalization of the statements of interviews. If the persons interviewed do not agree with the statement of the interview, the reasons for their positions will be documented.

Each ESA Staff Member shall fully cooperate with the Investigator(s) during the investigation procedure and report fairly and truly the relevant facts known to them, irrespective of whether or not these facts favour the Person(s) Concerned or the Person(s) Subject to Harassment.

Any individual interviewed by the Investigator(s) is bound by confidentiality and must refrain from discussing the case outside of the investigation process.

If needed for the investigation and subject to the Agency's Regulations and Rules, the ESA Framework on Personal Data Protection and the Security Regulations and Directives, the Investigator(s) may require the Agency to produce documents relevant to the facts the Investigator(s) is (are) seeking to establish and have access to all the premises of the Agency.

6. Rights of the Person(s) Concerned in the investigation process

When there is sufficient basis to warrant further investigation and require interviewing the Person(s) Concerned, the Person(s) Concerned shall benefit from the following rights:

- be informed of the allegations that are made against them,
- be heard, answer to the accusations and present their version of events with the right not to make self-incriminating declarations, under the conditions prescribed below,
- be accompanied by a colleague of their choice, especially a member of the Staff Association should the Person(s) Concerned be a staff member, under the conditions prescribed below,³
- benefit from a fair and impartial investigation,
- bring forward any oral or written evidence they see fit and to call for witnesses, and
- be informed of the final outcome of the investigation.

During the interview, the Person(s) Concerned shall be informed of the allegations made against them and shall have the opportunity to respond. However, the Person(s) Concerned shall not be informed of the identity of the Reporting Person(s).

Should the Person(s) Concerned wish to be accompanied by a colleague of their choice, the latter shall sign a document certifying that they are not directly or indirectly involved in the case at stake, and confirming that they do not have any conflict of interests. Furthermore, the Person(s) Concerned and the colleague assisting in the interview are bound by confidentiality. This is without prejudice of the possibility to have otherwise recourse to the assistance and support by an external lawyer during the investigation, e.g. for the preparation of the interview and written comments.

During the interview with the Investigator(s) the Person(s) Concerned may not be subjected to oppressive or misleading questioning and should not be offered any inducement or subjected to any threats. The Person(s) Concerned and, where applicable, the colleague accompanying them, shall sign the statements of the interview. If the Person(s) Concerned do not agree with the statements of the interview, the reasons for their positions will be documented.

³ Should the Person(s) Concerned be an on-site contractor, within the Scope defined in Section 3 of the Instruction, they may only be accompanied by another on-site contractor.

The statement and comments (if any) shall be attached to the investigation report and subsequently might be used in disciplinary action or court proceedings. The Person(s) Concerned shall receive a copy of the statement of their interview upon completion of the investigation procedure.

In the case of a subsequent disciplinary procedure, the statements of interviews annexed to the investigation report may be redacted to protect the identity of the Reporting Person(s) and that of the witnesses.

7. Rights of the Reporting Person(s) and the Person(s) Subject to Harassment in the Investigation process

7.1 Rights of the Reporting Person(s)

The Reporting Person(s) has the right to bring forward a report without fear of reprisal. For this purpose, the identity of the Reporting Person(s) shall be protected and anonymity vis-à-vis the Person(s) Concerned shall be ensured. Such principle implies that, while the Person(s) Concerned are entitled to be informed of the allegations made against them, they are not entitled to know who reported the claim to the Human Resources Department.

When the Reporting Person(s) is not the Person(s) Subject to Harassment, they may be called for interview as a witness. However, when the Reporting Person(s) is not the Person(s) Subject to Harassment, they are not entitled to be informed by the Human Resources Department of the final outcome of the investigation.

Anonymous reports are allowed but should be, to the extent possible, sufficiently supported by accessible evidence (allowing in particular the Investigator(s) to identify witnesses), so that the reports can be considered and processed in accordance with the present Annex. Failing accessible evidence, and if the Reporting Person(s) does not provide any means to be contacted by the Investigator(s), the Human Resources Department may decide to close the case in accordance with Section 3.2 above.

7.2 Rights of the Person(s) Subject to Harassment

Whether or not the Person(s) Subject to Harassment is also the Reporting Person(s), they shall be protected from retaliation, and shall be entitled to:

- be accompanied by a colleague of their choice and especially a member of the Staff Association should the Person(s) Subject to Harassment be staff members, under the same conditions as those applicable for the Person(s) Concerned (cf. Section 6 above),
- benefit from a fair and impartial investigation,
- be informed of the final outcome of the investigation.

8. Duration of the procedure

In general, the investigation procedure shall not exceed 40 working days from the date the Head of the Human Resources Department entrusts the Investigator(s) with the report for preliminary fact-finding and where applicable, further investigation. It may, however, be extended by an additional period of 20 working days and in exceptional circumstances even further.

9. Summary of findings and recommendation

At the end of the investigation procedure, the Investigator(s) shall draw up an investigation report, specifying the facts established, whether the allegations are substantiated and qualify as constituting harassment within the meaning of the Policy or not.

The Investigator(s) shall annex to the report the official statements of the interviews and any other documents they consider necessary. The report shall be signed by the Investigator(s) and submitted to the Head of the Human Resources Department.

10. Disciplinary procedure and other actions

After receiving the investigation report, the Head of the Human Resources Department shall decide on the course of action to be taken.

If the report concludes that the allegations are not substantiated, the Head of the Human Resources Department will close the case. However, the Head of the Human Resources Department may suggest or impose, when appropriate, other measures to maintain or restore a working relationship between the parties.

In the event of harassment being established, the Head of the Human Resources Department may in particular decide to initiate disciplinary action, as the case may warrant, and the Director General may refer the case to national administrative or judicial authorities. The investigation procedure established in the present Annex does not preclude the immunity from jurisdiction granted to the ESA Staff Members of the Agency through Article XVI.a of Annex I to the ESA Convention, nor the duty to waive such immunity under the conditions set out in Article XXI.2 of Annex I to the ESA Convention.

If following the investigation, disciplinary proceedings against a staff member are opened, they shall have access to the facts established during the investigation,

without prejudice to other persons' right of privacy, confidentiality and protection against retaliation. For this purpose, statements of interviews annexed to the investigation report may be provided to the staff member concerned by the disciplinary proceedings, provided that those be redacted so as to maintain the anonymity of the interviewees vis-à-vis the staff member. Such proceedings will be filed in the Personal File in accordance with Staff Rule 8/6 and may be removed upon request if they do not lead to a sanction.

The Head of the Human Resources Department shall, irrespective of any action to be taken, e.g. in the framework of a disciplinary procedure, follow up the case with the Person(s) Subject to Harassment, in order to ensure that there are no further reasons for complaint and that they have not been subject to retaliation or other adverse consequences. If the Reporting Person(s) is not the Person(s) Subject to Harassment, the Head of the Human Resources Department shall also conduct that follow-up exercise with them.

11. Interim protective measures

On the recommendation of the Investigator(s), the Head of the Human Resources Department may decide to take interim measures if these are deemed necessary.

Where interim measures are taken, the duration of the measures, shall be laid down in the decision. They shall not prejudice the outcome of the investigation in any way.

12. Security Marking of Communications

Communications between the Investigator(s) and any other person involved in the investigation procedure are considered ESA UNCLASSIFIED – For ESA Official Use Only – HR in Confidence and shall therefore only be disclosed in accordance with sections 4.1.2.1 and 4.1.2.3 of the ESA Security Directives.